

IP & Confidentiality Click-Through — DRAFT FOR ATTORNEY REVIEW

THIS IS A PLAIN-ENGLISH FIRST DRAFT WRITTEN BY CLAUDE. NOT LEGAL ADVICE. NOT BINDING UNTIL REVIEWED, EDITED, AND APPROVED BY A LICENSED ATTORNEY IN YOUR JURISDICTION.

Purpose: A separate, explicit consent that the customer ticks at checkout — distinct from the Terms of Service. This mirrors the IP & Confidentiality Agreement Tab uses in the live workshop (per facilitator guide Step 2). The intent is to make IP ownership unambiguous: customer owns their content, we own our methodology, neither party copies the other. **Where it appears:** A separate checkbox at the Stripe checkout page, with this text either inline (short version) or behind a "view full text" link (long version). The customer must check the box to complete purchase. Capture timestamp of consent in the order record.

SHORT VERSION (display inline at checkout, ~150 words)

By checking this box, I acknowledge and agree:

1. **My ideas are mine.** Anything I share during the Brand Blueprint intake — my business idea, my story, my audience, my goals — is my intellectual property. IEI Ventures will not share my content publicly or with other customers without my explicit written permission.
1. **The IEI Brand System is theirs.** The methodology, frameworks, AI prompts, worksheets, and software that IEI Ventures uses to build my Brand Blueprint are the proprietary property of IEI Ventures. I will not copy, replicate, reverse-engineer, resell, or train AI models on the IEI Brand System.
1. **What's built for me is mine.** The brand deliverables IEI Ventures creates specifically for me (my brand messaging, logo, website, etc.) belong to me upon full payment, subject to the Terms of Service.
1. **Recordings, if any, follow these same rules.** If I consent to recording any portion of the intake or review process, the recording belongs to IEI Ventures but won't be shared publicly without my permission.

☐ I agree to the IP & Confidentiality terms above [link to full version].

LONG VERSION (linked from the checkbox)

IEI Ventures — Brand Blueprint IP & Confidentiality Agreement

By checking the consent box at checkout, you ("Customer," "you") and IEI Ventures [LLC / Inc.] ("IEI Ventures," "we," "us") agree to the following terms regarding intellectual property and confidentiality. This Agreement is in addition to our Terms of Service and Privacy Policy.

1. Your Intellectual Property

All ideas, business concepts, brand stories, market knowledge, customer information, and other content you submit or share during the intake, review, or post-delivery support phases of Brand Blueprint ("Your Content") is and remains your intellectual property. We will not:

- Share Your Content publicly without your prior written permission;
- Share Your Content with other Brand Blueprint customers or third parties (except as listed in our Privacy Policy);
- Use Your Content to produce deliverables for any other customer;
- Copy, replicate, or commercially exploit Your Content beyond what's necessary to deliver your Brand Blueprint and operate our business as described in the Terms of Service and Privacy Policy.

You grant us a limited license to use Your Content solely to deliver your Brand Blueprint, as described in Section 8 of the Terms of Service.

2. Our Intellectual Property — The IEI Brand System

The IEI Brand System is a proprietary brand-development methodology developed by Tab Wolod and IEI Ventures over multiple years of consulting and facilitator work. It includes (but is not limited to):

- The 6-Module Structure: One Brilliant Idea, Who Are You? (ABCs of Branding), Who Are They?, What Do They Need?, The Narrative, Content & Communications;
- The Fourfold Path to Meaningful Marketing: Ideation, Impact, Implementation, Income;
- The 6-Part Offering Framework;
- The 5-Post Framework (Awareness · Trust · Convert);
- The 7-Part Narrative;
- Dream 100 Lite;
- The Authentic Brand Creation (ABCs) framework;
- "Lock It In" ritual structure;

- "From Idea to Income," "Ideas Equal Income," "Long live the light bulb moments," and other proprietary phrases and terminology;
- All associated worksheets (WS1 through WS10), prompts, templates, exemplars, scripts, software, and AI prompts.

You acknowledge that the IEI Brand System is the proprietary intellectual property of IEI Ventures. You agree NOT to:

- Copy, replicate, reproduce, or distribute the IEI Brand System or any substantial portion of it;
- Reverse-engineer the IEI Brand System from the Outputs you receive;
- Use the IEI Brand System or its components to build a competing product or service;
- Train any artificial intelligence model on the IEI Brand System;
- Resell, sublicense, or otherwise commercially exploit the IEI Brand System.

You DO receive the Outputs the system produces for you — your specific brand messaging, logo, etc. (See Section 3.)

3. The Outputs Belong to You

The brand deliverables produced specifically for your business through the Brand Blueprint service — your messaging, mission/vision/values, taglines, logo options, color palette, typography selections, website page, GTM checklist, content posts, narrative documents, and other tier-specific outputs ("Outputs") — belong to you upon full payment, subject to the assignment terms in Section 6 of our Terms of Service. You are free to use, modify, publish, sell, and license your Outputs for any lawful purpose. You are responsible for your own trademark clearance and IP review before commercial use (see Section 6 of the Terms of Service).

4. Confidentiality of Intake Conversations

The intake call (or in-app intake) is a confidential conversation between you and IEI Ventures. Unless you explicitly opt in, we will not:

- Publish, broadcast, or share recordings of the intake;
- Quote you publicly;
- Identify you as a customer in marketing materials.

If you choose to participate in a testimonial, case study, or reference-customer program, that is a separate written consent (the testimonial release form will be provided at that time). If we propose recording any portion of the intake or review (for quality, training, or note-taking purposes), we will ask for your explicit consent first. You can decline without penalty. Recordings, if made with your consent,

belong to IEI Ventures (per Section 7 of the Terms of Service) but are subject to the confidentiality protections above.

5. No Sharing Across Customers

The Brand Blueprint service is delivered one-to-one. We will not:

- Combine Your Content with another customer's content in any deliverable;
- Use one customer's brand work as an exemplar for another customer without explicit written permission;
- Connect you with other customers without your express request and consent.

(If we launch a cohort program in the future, that program will have its own separate consent terms regarding what is and isn't shared within the cohort.)

6. Duration

The obligations in this Agreement are perpetual with respect to:

- Your ownership of Your Content;
- Our ownership of the IEI Brand System;
- Your assignment of the Outputs to you;
- Mutual confidentiality of the intake conversation.

The license you grant us to use Your Content (Section 1) is limited to the duration needed to deliver your Brand Blueprint plus the retention period described in our Privacy Policy.

7. Enforcement and Remedies

You acknowledge that breach of this Agreement (particularly Sections 2 and 4) may cause irreparable harm for which monetary damages are inadequate. We may seek injunctive relief in addition to any other available remedies. The prevailing party in any dispute arising under this Agreement is entitled to recover reasonable attorneys' fees and costs, to the extent permitted by law.

8. Relationship to Other Agreements

This Agreement is in addition to, and does not replace, our Terms of Service and Privacy Policy. If there is a direct conflict between this Agreement and the Terms of Service on a topic of intellectual property or confidentiality, this Agreement controls.

9. Governing Law

This Agreement is governed by the laws of [STATE], consistent with the Terms of Service governing-law provision.

10. Acknowledgment

By checking the consent box at checkout, you confirm:

- You have read and understand this Agreement;
 - You agree to be bound by its terms;
 - You have the legal authority to enter into this Agreement;
 - The person checking the box (which may be different from the payment cardholder, e.g., if a business agent is purchasing on behalf of a company) is authorized to bind the Customer.
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Items Flagged for Attorney Attention

1. **Trade-secret protection language** — Section 2: I drafted as IP ownership plus contractual restrictions. Consider whether to add explicit trade-secret designation under the Defend Trade Secrets Act (federal) and relevant state Uniform Trade Secrets Act variants. This affects available remedies if there's a breach.
1. **Liquidated damages clause** — Section 7: consider adding a specified liquidated-damages amount for clear IP violations (e.g., copying the framework). Attorney call to discuss enforceability.
1. **Survival** — Section 6: I drafted as perpetual for ownership/confidentiality. Confirm enforceability period under state law.
1. **Two-party-state recording consent** — Section 4: even with consent capture, two-party-state laws may require additional confirmation language. Confirm process.
1. **Class-action waiver** — consider whether to add (and confirm enforceability in your jurisdiction post-recent Supreme Court decisions on B2C arbitration/waivers).
1. **Carve-outs for whistleblower / Defend Trade Secrets Act notice** — federal law requires specific notice in confidentiality agreements about whistleblower immunity (18 U.S.C. § 1833(b)). Recommend adding.
1. **What if a customer disputes ownership of an Output?** — e.g., they say "you used my idea for someone else." Confirm dispute-resolution path; consider mediation-first clause.
1. **Click-wrap enforceability** — modern courts generally enforce click-wrap with clear assent, but UX matters: the checkbox must be unchecked by default, the link to full text must be conspicuous, the

user must take affirmative action. Confirm checkout UX meets these standards.